ORDINANCE NO. 463

OF

CITY OF RECTOR, ARKANSAS

AN ORDINANCE TO REGULATE INDIVIDUALS, GROUPS OR CORPORATIONS FROM HAVING OR PERMITTING PUBLIC OR PRIVATE SALES, COMMONLY REFERRED TO AS GARAGE SALES, FLEA MARKETS, DEFINED HEREIN; ON ANY PROPERTY OWNED, PUBLIC, PRIVATE OR BOTH, IN PUBLIC PLACES AND NOT AN ENCLOSED BUILDING.

WHEREAS; the Rector City Council has had complaints regarding individuals or groups conducting garage sales and flea markets in public places and not an enclosed structure.

WHEREAS; the City Council has decided that it would be in the best interest of the City of Rector that all flea markets or garage sales must be conducted in an enclosed building or structure as provided herein and not on the outside of the structure in view of the public.

SECTION 1: DEFINITIONS

Garage Sales (Flea Market) for purposes of this ordinance, is defined as personal property; sold or given away to individuals through what is customarily known as yard sales, carport sales, garage sales, porch sales, patio sales, items of a collectable nature, new and old items that could have monetary, nonmonetary, inherent, subjective or idiosyncratic value.

Enclosed building is defined as a structure with surrounding support walls, a solid floor and a roof to cover the top. It may be metal, wood, or concrete, or a combination of the three, but not limited thereto.

Owner is defined as a person, group or corporation, who owns the fee title, or who leases the land with right of occupancy, or who has an oral contract with right of possession, or life tenant with possession.

THEREFORE, effective May 15, 1999 it shall be unlawful for any individual or group, or owner, as defined, to conduct or to permit a garage sale to be conducted on their property, that is not held in an enclosure as defined in this ordinance and is therefore held in public view.

SECTION 2: Nothing herein shall prevent merchants from having what is commonly known as sidewalk sales in front of their respective businesses in the City of Rector who have paid their occupant's license.

SECTION 3: This ordinance is not to interfere with garage sales that are permitted under Ordinance No. 431 permitting residents to have not more than four (4) sales per year, even if in the public view.

SECTION 4: Violations of this ordinance shall constitute a misdemeanor and the fine for each violation shall be Twenty-five Dollars ($25.00) to One-hundred Dollars ($100.00). Each day of such sale in violation of this ordinance shall constitute a separate offense. Owners, as defined, of the property who permit such sales shall also be in violation and punished likewise.

SECTION 5: An emergency is declared to exist by the City Council within the City of Rector and the passage of this ordinance is necessary for the preservation of public health, maintaining safety and public peace of the citizens of Rector. The members of the City Council hereby unanimously and expressly dispense with the rule requiring the reading of an ordinance on three different dates before its passage thereof, and this ordinance shall take effect and be enforced from and after its passage.

This ordinance adopted, passed and approved this 3RD day of May, 1999.

Ronald E. Kemp
Mayor

Attest:

Kenneth R Burns
Kenneth Burns, City Recorder